

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 803

BY WAYS AND MEANS COMMITTEE

AN ACT

RELATING TO EXECUTION; AMENDING SECTION 19-2716, IDAHO CODE, TO PROVIDE THAT PROCEDURES USED IN AN EXECUTION SHALL NOT BE SUBJECT TO CERTAIN PROVISIONS OF LAW; AMENDING SECTION 19-2716, IDAHO CODE, AS AMENDED BY SECTION 1, CHAPTER 36, LAWS OF 2025, TO PROVIDE THAT PROCEDURES USED IN AN EXECUTION SHALL NOT BE SUBJECT TO CERTAIN PROVISIONS OF LAW; AMENDING SECTION 19-2716A, IDAHO CODE, TO REVISE A PROVISION REGARDING CONFIDENTIALITY; AND DECLARING AN EMERGENCY AND PROVIDING EFFECTIVE DATES.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Section 19-2716, Idaho Code, be, and the same is hereby amended to read as follows:

19-2716. METHODS OF EXECUTION. (1) The punishment of death shall be inflicted by the following methods:

(a) Continuous, intravenous administration of a lethal quantity of a substance or substances approved by the director of the Idaho department of correction until death is pronounced by a coroner or a deputy coroner; or

(b) Firing squad.

(2) Not later than five (5) days after the issuance of a death warrant, the director of the Idaho department of correction must determine, and certify by affidavit to the court that issued the death warrant, whether execution by lethal injection, as described in subsection (1) (a) of this section, is available.

(3) If the director certifies that lethal injection is available, the method of execution shall be lethal injection.

(4) If the director does not certify that lethal injection is available, fails to file a certification as required pursuant to subsection (2) of this section, or otherwise determines that lethal injection is unavailable, the method of execution shall be firing squad.

(5) If a court holds that lethal injection is unconstitutional, on its face or as applied, or otherwise determines that firing squad is a constitutionally required method of execution, the method of execution shall be firing squad.

(6) The director shall determine the procedures to be used in any execution. Such procedures shall not be subject to the provisions of chapter 52, title 67, Idaho Code.

(7) The provisions of this section shall apply to all executions carried out on and after the effective date of this enactment, irrespective of the date sentence was imposed.

1 SECTION 2. That Section 19-2716, Idaho Code, as amended by Section 1,
2 Chapter 36, Laws of 2025, be, and the same is hereby amended to read as fol-
3 lows:

4 19-2716. METHODS OF EXECUTION. (1) The punishment of death shall be
5 inflicted by the following methods:

6 (a) Firing squad; or

7 (b) Continuous, intravenous administration of a lethal quantity of a
8 substance or substances approved by the director of the Idaho depart-
9 ment of correction until death is pronounced by a coroner or a deputy
10 coroner.

11 (2) Not later than five (5) days after the issuance of a death warrant,
12 the director of the Idaho department of correction must determine, and cer-
13 tify by affidavit to the court that issued the death warrant, whether execu-
14 tion by firing squad, as described in subsection (1) (a) of this section, is
15 available.

16 (3) If the director certifies that firing squad is available, the
17 method of execution shall be firing squad.

18 (4) If the director does not certify that firing squad is available or
19 fails to file a certification as required pursuant to subsection (2) of this
20 section, the method of execution shall be lethal injection, as described in
21 subsection (1) (b) of this section.

22 (5) If a court holds that firing squad is unconstitutional, on its face
23 or as applied, or otherwise determines that lethal injection is a consti-
24 tutionally required method of execution, the method of execution shall be
25 lethal injection.

26 (6) The director shall determine the procedures to be used in any execu-
27 tion. Such procedures shall not be subject to the provisions of chapter 52,
28 title 67, Idaho Code.

29 (7) The provisions of this section shall apply to all executions car-
30 ried out on and after the effective date of this enactment, irrespective of
31 the date sentence was imposed.

32 SECTION 3. That Section 19-2716A, Idaho Code, be, and the same is hereby
33 amended to read as follows:

34 19-2716A. PRACTICE OF MEDICINE AND POSSESSION OF CONTROLLED SUB-
35 STANCES -- EXEMPTION -- EXCEPTIONS TO GOVERNMENTAL LIABILITY -- CONFID-
36 DENTIALITY -- LICENSURE. (1) Notwithstanding any other provision of law,
37 infliction of the punishment of death in the manner required by section
38 19-2716, Idaho Code, shall not be construed as the practice of medicine. The
39 director of the department of correction and all persons authorized by him
40 to participate in an execution, as provided in section 19-2716, Idaho Code,
41 shall be exempt from all laws, rules and regulations governing the practice
42 of medicine.

43 (2) For the purposes of carrying out the provisions of section 19-2716,
44 Idaho Code, any pharmacy, prescriber, manufacturer, wholesale distributor
45 or other entity authorized by law to possess controlled substances may dis-
46 tribute controlled substances to the director or his designees and shall not
47 be subject to criminal or civil liability for the death of the condemned per-
48 son.

(3) For the purposes of carrying out the provisions of section 19-2716, Idaho Code, the director and his designees may obtain, possess, store and administer controlled substances and are exempt from all laws, rules and regulations governing pharmacies and controlled substances, notwithstanding any other provision of law. Any employee of the state of Idaho participating in an execution pursuant to section 19-2716, Idaho Code, shall be presumed to be acting within the course and scope of his employment and without malice or criminal intent for purposes of section 6-903, Idaho Code. Any employee, agent or contractor of the state of Idaho participating in an execution pursuant to section 19-2716, Idaho Code, shall not be subject to criminal or civil liability for the death of the condemned person.

(4) For purposes of carrying out the provisions of section 19-2716, Idaho Code, the identities of any of the following persons or entities involved in the planning, training, or performance of an execution shall be confidential, shall not be subject to disclosure, and shall not be admissible as evidence or discoverable in any proceeding before any court, tribunal, board, agency, or person:

(a) The on-site ~~physician and~~ emergency medical personnel, any member of the escort team or, medical team, or firing squad, and any person or entity that provides technical assistance during the execution process; and

(b) Any person or entity who compounds, synthesizes, tests, sells, supplies, manufactures, stores, transports, procures, dispenses, or prescribes the chemicals or substances for use in an execution or that provides the medical supplies or medical equipment for the execution process.

(5) If any person who participates or performs ancillary functions in an execution is licensed by a board, the licensing board shall not suspend or revoke the person's license, or take disciplinary action against the person, because of the person's participation in an execution.

SECTION 4. An emergency existing therefor, which emergency is hereby declared to exist, Sections 1 and 3 of this act shall be in full force and effect on and after passage and approval. Section 2 of this act shall be in full force and effect on and after July 1, 2026.